**IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH**
**(*through* Hybrid Mode)**
**COURT-I**

**Item No. 107**

**CP(CAA)/50/Chd/Pb/2022**
**(2nd Motion)**

**IN THE MATTER OF:**

Beverly Bakers Ltd. …Transferor Company

**Under Section:** 230-232, CA 2013

**Order delivered on 06.09.2024**

**CORAM:**

**SH. UMESH KUMAR SHUKLA**
**HON'BLE MEMBER (T)**

**SH. HARNAM SINGH THAKUR**
**HON'BLE MEMBER (J)**

**PRESENT:**

| | | |
|---|---|---|
| For the Petitioner Companies | : | Mr. Vaibhav Sahni, Advocate |
| For the ROC/RD | : | Mr. Vineet Khatri, Company Prosecutor |
| For the OL | : | Mr. Arav Gupta |
| For the Income Tax Department | : | None (Right to reply is forfeited) |

**ORDER**

Compliance affidavit has been filed by learned counsel for the petitioner companies for sending the copy of response to RD report vide Diary No.01562/4 dated 05.07.2024. The same is taken on record.

It is stated by Mr. Vineet Khatri-Company Prosecutor for RoC/RD that they have gone through the response of the petitioner companies and found it satisfactory, they have no further observation.

It is stated that learned counsel for the petitioner companies that there are no dues with respect to Income Tax pending against all the companies as on today. He is directed to file an affidavit to that effect supporting with the latest assessment

orders of last three years which the petitioner companies have received. Let the same be filed within two days with a copy in advance to the counsel opposite.

The counsel of the petitioner company is further directed to submit an affidavit with regard to Food Safety and Standard Authority of India being the regulator in the present case correlating the business of the petitioner company with relevant provisions of the Food Safety and Standard Act, 2006 and Food Safety and Standard Rules 2011. Let the matter be listed on 13.09.2024 in the supplementary list.

Sd/-
**(UMESH KUMAR SHUKLA)**
**MEMBER (T)**

Sd/-
**(HARNAM SINGH THAKUR)**
**MEMBER (J)**

Pooja